

Vijayan vs Ramajayanthi on 24 April, 2026

Author: C.V. Karthikeyan

Bench: C.V. Karthikeyan

CMA No

IN THE HIGH COURT OF JUDICATURE AT MADRAS
DATED: 24-04-2026
CORAM
THE HON'BLE MR JUSTICE C.V. KARTHIKEYAN
AND
THE HON'BLE MR JUSTICE K. RAJASEKAR

CMA No. 2772 of 2022

Vijayan

Vs

Ramajayanthi

..A

..Res

Appeal filed under Section 19 of the Family Court Act, to set
fair and decretal order dated 23.10.2021 in O.P.No.385 of 2019 on the fi
the Family Court, Krishnagiri.

For Appellant(s):	Mr.R.Selvakumar
For Respondent(s):	Mrs.N.Nathami for Mr.T.S.Baskaran

JUDGMENT

(Judgment of the Court was delivered by K.Rajasekar, J.) The petitioner / husband in O.P No.385 of 2019 on the file of the Family Court, Krishnagiri, is the appellant herein.

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2. O.P.No.385 of 2019 had been filed by the appellant herein / husband seeking divorce and dissolution of the marriage solemnized between himself and the respondent herein / wife on 19.06.2011 as per Hindu rites and customs on the ground of cruelty.

3.By an order dated 23.10.2021, the trial Court has dismissed O.P.No.385 of 2019 filed by the husband for divorce and dissolution of the marriage.

4.The unsuccessful husband, challenging the dismissal of the petition in O.P.No.385 of 2018, has come forward with this appeal.

5.For the sake of convenience, the parties are herein referred to as husband and wife.

6.The husband has filed O.P.No.385 of 2019 by invoking Sections 13(1) (i-b) and 13(1A) of the Hindu Marriage Act, 1955. The marriage between the parties herein took place on 19.06.2011 and they are blessed with two children. The allegation of the husband is that, from the date of the marriage, the respondent herein / wife is insisting for setting up a separate matrimonial home, after partitioning the family properties. Accordingly, as per her demands, he had separated from his family and had set up a separate matrimonial home. She used to demand money regularly and also threat him with dire consequences, if he _____ Page2 of 11 <https://www.mhc.tn.gov.in/judis> has made any attempt to physical relationship with her. Further, she has not acted as a dutiful wife and has not taken care of any day-to-day activities. When husband had questioned her attitude, which resulted in severe retaliation by the wife, both physically as well as verbally. She used to demand money for having sexual intercourse with him and also regularly threatened him, that if he had made any attempt, she will cut his private parts. Unable to bear such a situation and since she had continuously avoided conjugal relationship, he had filed the original petition.

7.The wife filed a counter affidavit denying all the allegations raised in the original petition. She has also stated that they were having two children and she is taking care of the husband and children properly. However, the husband has failed to give proper maintenance and was not giving any money for the family expenses and she is maintaining the entire family. The husband also used to harass and insult her and hence, she prayed for dismissal of the original petition.

8.During trial, the husband examined himself as PW-1 and examined another witness as PW-2 and the wife examined herself as RW-1. Exs.P1 to P6 were marked on the side of the husband. No documents were marked on the side of the wife.

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9.The trial Court, after considering the evidence placed on record, has agreed with the case of the wife that the husband has committed various cruelty on the wife and held that the husband has failed to establish that he is entitled to seek dissolution of the marriage.

10.The learned counsel for the appellant submits that admittedly, there is no cohabitation between the parties for more than one year and further, there are certain serious allegations of assaulting and abusing the husband by the wife and though it has been denied by the wife, the conduct of the wife refusing to have physical relationship with him, has caused mental cruelty to the husband and thereby, he is entitled to seek dissolution of the marriage. He further submitted that the appellant got separated from his family and had set up a separate matrimonial home. Further, there are

evidence placed on record to show that, without the consent of the husband, she admitted the elder child in the school, which had also resulted in mental agony. Further, she has threatened the husband with dire consequences and gone to the extent of removing his private parts. Finally, unable to bear the same, he approached the Court seeking dissolution of marriage and prays to allow the appeal.

11.The learned counsel for the respondent / wife submitted that though several pleadings were made by the husband regarding the allegation of cruelty, the grounds raised in the petition are only based on the desertion of the wife and _____ Page4 of 11 <https://www.mhc.tn.gov.in/judis> also non-cohabitation between them. It is an admitted fact that till May 2018, they live happily together and thereafter, though they were living in the same room, there was no cohabitation between them till the filing the petition in the year 2019. However, the grounds raised by the husband are not made out and the trial Court has elaborately considered the evidence of both sides. Hence, he prays to confirm the same.

12.We have carefully considered the arguments advanced and perused the material records.

13.In the evidence of PW-1, though in the chief examination, he has narrated certain grievances, more particularly, touching the harassment made to him that he was forced to separate from his family and to set up a separate house and the allegation that he had been attacked verbally and physically by the wife, in the cross examination, he admits that he had not taken any steps to resolve or redress his grievance. Though, he has stated that he got separated from the family and joined her subsequently, lived with her till May 2018. It is the specific evidence of PW-1 / husband in the cross examination that the entire family was living happily till May 2018. This shows that the couples along with children lived happily and the facts pleaded have required strong evidence to show that husband was subjected to cruelty. Per contra, his evidence in this regard falsified the allegations leveled till May 2018. He further submitted that _____ Page5 of 11 <https://www.mhc.tn.gov.in/judis> after May 2018, his wife had withdrawn from the cohabitation and matrimonial life. This has been specifically denied by the wife in her evidence as well as in her pleadings.

14.It is her case that the husband has failed to maintain the family and he has not even shown any love and affection towards the family and though they were living together in the same home, she was not in a position to cohabit with him.

15.In the cross examination, several facts were elicited and it only revealed that the husband has not treated the family well and made false averments in his petition. The relevant evidence in his cross examination is as follows:

“d;W tiu ehd;. vd ; kidtp. FHe;ijfs ; xnu tPl;oy ; jhd; trpf;fpnwhk;/ vd; kidtp kw;Wk; FHe;ijfs; rhg;gpl;lhh;fsh> ,y;iyah> vd nfl;Ls;nsdh vd;why ; nfl;ftpy;iy/ tPl;ow;F vjhtJ rikay; bra;a bghUs;fs ; ntz;Lkh> vd;W vd ; kidtpaplk ; ehd; nfl;ljpy;iy/ fle;j ,uz;L tUl';fshf th';fp bfhLj;jJk; ,y;iy/ vd; kFDf;F kl;Lk; gp!;nfl; th';fp bfhLj;Js;nsd;/ nkYk; kFDf;F irf;fps; th';fp bfhLj;Js;nsd;/ vd; kidtp vd; ngr;ir nfl;gjpy;iy vd;W g";rhaj;jhh;fs;

T/o ngrp ,UtUf;Fk; rkhjhdk; bra;J itj;J mwpt[iu Twp brhd;whh;fs; vd;W brhd;dhy; rhpjhd;/ vd; mg;ghtpd; ez;gh;fis itj;Jk; g";rhaj;J bra;njd;/ vd; mg;ghtpd; ez;gh;fSk; v';fs ; ,UtUf;Fk ; rkhjhdkhf ,Uf;FkhW 2018y ; mwpt[iu _____ Page6 of 11 https://www.mhc.tn.gov.in/judis Twpdhh;fs; vd;W brhd;dhy; rhpjhd;/ bghpnahh;fs; mwpt[iu Twpa[k; ehd; nfl;fhky; ,e;j tHf;if jhf;fy; bra;Jtpl;nld; vd;W brhd;dhy; rhpay;y/ kidtpf;Fhpa flikfis vd ; kidtp 2018 tiu rhptu bra;J te;jhh;/ vdf;Fk ; vd ; kidtpf;Fkpilna elf;Fk ; gpur;rid vy;yhk ; v';fs ; tPl;Lf;Fs;Sk;/ v';fs ; fhk;nghl;Lf;Fs;Sk ; jhd; ele;jJ/”

16.The evidence only stands against the husband and there is no evidence produced by the husband to prove his case, per contra it only show that he has not even shown any care and protection to the children. This probable the case of the wife that the husband has failed to maintain the family which resulted in mental agony to her.

17.It is also relevant to record the fact that, till May 2018 there was cohabitation between the couple and alleging non-cohabitation after one year but within two years the husband filed petition seeking dissolution of marriage invoking Sections 13(1)(i-b) and 13(1A) of the Hindu Marriage Act, 1955, which reads as follows:

“13.Divorce.-

(1)Any marriage solemnized, whether before or after the commencement of this Act, may, on a petition presented by either the husband or the wife, be dissolved by a decree of divorce on the ground that the other party-

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(ib) has deserted the petitioner for a continuous period of not less than two years immediately preceding the presentation of the petitioner.” (1A) Either party to a marriage, whether solemnized before or after the commencement of this Act, may also present a petition for the dissolution of the marriage by a decree of divorce on the ground -

(i)that there has been no resumption of cohabitation as between the parties to the marriage for a period of one year or upwards after the passing of a decree for judicial separation in a proceeding to which they were parties; or

(ii)that there has been no restitution of conjugal rights as between the parties to the marriage for a period of one year or upwards after the passing of a decree for restitution of conjugal rights in a proceeding to which they were parties.

18.The above Section 13(1)(ib) of the Act, would apply, only if the wife has deserted the husband for not less then two years, whereas, the petition has been filed after completion of one year. Hence, the ground of desertion is not made out and the husband could not invoke this ground.

19. Similarly, he has also invoked Section 13(1A) of the Act, which is also not applicable to the facts of this case, since this Section relates to non- cohabitation after passing of the decree. In this case, there was no decree passed _____ Page8 of 11 <https://www.mhc.tn.gov.in/judis> prior to filing of the petition. Hence, the original petition is not maintainable under this ground.

20. At the time of arguments, it was urged that several cruelties have been caused by the wife, though no ground of cruelty has been invoked in the petition. The evidence placed on record also shows contrary fact that the husband has caused cruelty by not supporting the family and more particularly, not parting with any expenses for meeting the day-to-day activities. It is also placed on record that the wife is also well educated and the husband is also equally educated and he is employed and he has failed to support the family which would only shows that he has caused cruelty.

21. In view of the discussion made above, we are of the view that there is no ground made out to interfere with the impugned order passed by the Family Court, Krishnagiri, in O.P.No.385 of 2019 dated 23.10.2021. Accordingly, this Appeal stands dismissed. No costs.

(C.V.K.,J.) (K.R.S.,J.) 24-04-2026 smv Index: Yes/No Speaking/Non-speaking order Neutral Citation: Yes/No _____ Page9 of 11 <https://www.mhc.tn.gov.in/judis> To The Family Court, Krishnagiri.

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